1.

CASE #	CASE NAME	HEARING NAME
CVRI2402839	BARTELS vs REGENTS OF THE UNIVERSITY OF CALIFORNIA	MOTION FOR RECONSIDERATION REGARDING EX PARTE MOTION TO DISMISS WATKINS

Tentative Ruling:

The motion for reconsideration is denied.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2406332	OWENS vs BOMBARDIER RECREATIONAL PRODUCTS INC.	MOTION FOR ATTORNEYS FEES

Tentative Ruling:

The parties do not dispute Plaintiffs are the prevailing party. Under Civil Code section 1794(d), "If the buyer prevails in an action under this section, the buyer *shall* be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been *reasonably incurred* by the buyer in connection with the commencement and prosecution of such action." (Emphasis added.) The federal Magnuson-Moss Warranty Act contains a similar fee-shifting provision. (15 U.S.C. § 2310, subd. (d)(2).) Plaintiffs are entitled to fees under these provisions. The only question to be determined by this motion is the amount of the award to Plaintiffs.

The matter of reasonableness of a party's attorney fees is within the discretion of the trial court. (*Bruckman v. Parliament Escrow Co*. (1989) 190 Cal.App.3d 1051, 1062.) Fee motions should be based on detailed time records. (*Crespin v. Shewry* (2004) 125 Cal.App.4th 259, 271.) The records should detail crucial information as the types of issues involved, services performed, numbers of hours, billing rates, etc. (*Martino v. Denevi* (1986) 182 Cal.App.3d 553, 559.) The court is then entitled to make its own evaluation of the reasonable worth of the work done in light of the nature of the case and the credibility of counsel's declaration, unsubstantiated by time records and billing statements. (See *Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587; *see also Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1394.) In determining the reasonable amount of attorney fees, the court first determines a lodestar figure (time reasonably spent by each biller multiplied by an hourly rate that is reasonable for each biller). (*Serrano v. Priest* (1977) 20 Cal.3d 25, 48.)